

SENATE BILL 2538

By Hatcher

AN ACT to amend Tennessee Code Annotated, Title 36
and Title 37, relative to children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 1, is amended by adding the following as a new part:

37-1-1001.

(a) Children have equal protection under the law and possess fundamental rights to safety, protection from harm, and consideration of their best interests as the paramount concern in all legal proceedings, governmental actions, and policy decisions affecting their welfare.

(b) Every child has the inalienable right to be protected from physical, sexual, emotional, and psychological abuse, neglect, and exploitation. A child shall not be knowingly placed in the custody, care, or unsupervised contact of any person with a documented history of child abuse, domestic violence, or other conduct that poses a substantial risk of harm to the child.

37-1-1002.

(a) Children have the right to:

(1) Legal representation by qualified counsel in all proceedings substantially affecting their welfare, custody, or placement that does not include an agent of the court;

(2) Have their views and preferences considered in an age-appropriate manner;

(3) Express their concerns about their safety and living situation without fear of retaliation; and

(4) Timely resolution of legal proceedings affecting their welfare.

(b) Courts and judges shall:

(1) Consider the child's safety, well-being, and best interests as the paramount concern in all decisions;

(2) Consider all available evidence regarding risks to the child's safety, including, but not limited to, criminal history, protective services records, medical evidence, and expert testimony. In any proceeding involving a child-impact determination, expert testimony relating to the safety, health, well-being, or development of a child must be admitted only if the professional has demonstrated, subject-matter-specific clinical and professional expertise directly related to the opinions offered. Such expertise shall not be based solely on forensic experience, and qualifications shall be evaluated under Rule 702 of the Tennessee Rules of Evidence; and

(3) Provide clear justification when placing a child with a caregiver against the recommendations of child protective services, a guardian ad litem, or other child welfare professionals.

37-1-1003.

Any violation of a child's rights under this section constitutes a deprivation of constitutional rights under color of law. A child, through the child's representative, has standing to seek judicial relief for violations of rights guaranteed by this part. This section does not limit other protections afforded to children under law.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.